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County: los-angeles

Division: Civil Law and Motion

Department: 834

Hearing date: 2026-07-02

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Case Number: 25LBCP00025 Hearing Date: July 2, 2026 Dept: 834

Superior Court of California

County of Los Angeles

Department 834

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DAVID G. KARKOUR,

Petitioner(s),

vs.

DEPARTMENT

OF PUBLIC SOCIAL SERVICES,

Respondent(s).

Case No.:

25LBCP00025

Hearing Date:

July 2, 2026

[TENTATIVE]

ORDER RE: MOTION FOR JUDGMENT ON THE PLEADINGS

Respondent County of Los Angeles Department of Public Social Services ("Respondent") moves for judgment on the pleadings against petitioner David George Karkour ("Petitioner").

The motion for judgment on the pleadings is granted.

I.

Background

1.

Factual Allegations

The petition alleges in pertinent part as follows:

Petitioner applied for General Relief cash aid from Respondent.

(Pet. at 4.) [1] On

December 23, 2024, Respondent notified Petitioner it was denying his application for General Relief because Petitioner failed to provide copies of bank or credit union statements, because his Social Security benefits exceeded the General Relief income limit, and because the total value of his personal property exceeded the General Relief personal property limit. (Pet. at 4; see also Pet. at 2-3.) Petitioner alleges he in danger due to exceptional circumstances and requires General Relief cash aid. (Pet. at 1.)

2.

Procedural History

On January 15, 2025, Petitioner filed his petition in the South District (Long Beach Courthouse). A proof of service filed January 22, 2025 shows Petitioner served the summons and petition on Respondent by personal service on January 21, 2025. On March 12, 2025, Respondent filed its answer generally denying the petition. On March 21, 2025, Petitioner filed a reply to Respondent's answer.

On May 15, 2025, Department S25 granted Respondent's motion to transfer and ordered the case transferred to Department 1 of Stanley Mosk Courthouse. On July 1, 2025, the same Department denied Petitioner's motion to reconsider that order.

On December 17, 2025, Department 1 reassigned the case to Judge Stephen Goorvitch in Department 82 of Stanley Mosk Courthouse.

On February 26, 2026, Respondent filed the instant Motion for Judgment on the Pleadings ("MJOP"), originally noticed to be heard in Department 82 (now Department 833) on April 17, 2026.[2] On March 16, 2026, Petitioner filed an opposition. On March 24, 2026, Respondent filed a reply.

On April 21, 2026, the case was reassigned to Judge Joseph Lipner in Department 82 (833), and on May 6, 2026, that Department granted Petitioner's Code of Civil Procedure ("CCP") section 170.6 challenge and reassigned the case to Department 834.

As the matter is fully briefed, this Court re-calendared the MJOP hearing for July 2, 2026 at 9:30 a.m.

II.

Legal Standard

An MJOP has the same function as a general demurrer, but it is made after the time for demurrer has expired. (See, e.g., *Lance Camper Mfg. Corp. v. Republic Indemnity Co. of America* (1996) 44 Cal.App.4th 194, 198 ["Lance"]; *Weil & Brown, Civil Proceedings Before Trial* (1998) § 7:275.)

The rules governing demurrers apply to statutory MJOPs except as provided by CCP section 438. (*Cloud v. Northrop Grumman Corp.* (1998) 67 Cal.App.4th 995, 999 ["Cloud"]; *Lance* at 198.) An MJOP by a defendant can be made on the ground that (1) the court lacks jurisdiction of the subject of one or more of the causes of action alleged or (2) the complaint (or any cause of action) does not state facts sufficient to state a cause of action. (CCP § 438(c).)

An MJOP performs the same function as a general demurrer, and thus attacks only defects disclosed on the face of the pleadings or by matters that can be judicially noticed. (See, e.g., *Weil & Brown, Civil Procedure Before Trial* (1998) §§ 7:275, 7:322; *Lance, supra*, 44 Cal.App.4th at 198.) Presentation of extrinsic evidence is

therefore not proper on an MJOP. (Cloud, supra, 67 Cal.App.4th at 999.) However, on an MJOP, a court may take judicial notice of something that cannot reasonably be controverted, even if it negates an express allegation of the pleading. (See Columbia Casualty Co. v. Northwestern Nat. Ins. Co. (1991) 231 Cal.App.3d 457; Evans v. California Trailer Court, Inc. (1994) 28 Cal.App.4th 540, 549.)

Both a demurrer and MJOP accept as true all material factual allegations of the challenged pleading, unless contrary to law or to facts of which a court may take judicial notice. The sole issue is whether the complaint, as it stands, states a cause of action as a matter of law. (Mechanical Contractors Assn. v. Greater Bay Area Assn. (1998) 66 Cal.App.4th 672, 677; Edwards v. Centex Real Estate Corp. (1997) 53 Cal.App.4th 15, 27.)

In addition to statutory grounds, an MJOP may be made under the common law at any time either prior to or at the trial itself. (See Stoops v. Abbassi (2002) 100 Cal.App.4th 644, 650; Weil & Brown, Civil Proceedings Before Trial (2015) §7:277.)

III.

Request for Judicial Notice

Respondent seeks judicial notice of the following exhibits

(1) Los Angeles County Code of Ordinances ("LACC") Chapter 2.102 – Department of Public Social Services (RJN Ex. 2); and (2) Department of Public Social Services Policy ("Policy") 44-301 0 Aid Payments (RJN Ex. 3). Petitioner objects on the grounds that the local policies should not control and are offered to show a "disputed legal and factual conclusion." This argument applies to the merits of the motion, not whether the material is judicially noticeable. The requests are for legislative and regulatory enactments subject to judicial notice and, therefore, are granted. (Evid. Code § 452(b).)

IV.

Analysis

Respondent moves for judgment on the pleadings on the grounds that the petition fails to state facts sufficient to constitute a cause of action. Respondent asserts that, accepting the allegations as true, Petitioner cannot establish eligibility for General Relief as a matter of law.

As Respondent argues, under LACC Chapter 2.102, the amount Respondent may grant in General Relief is set by the General Relief Basic Budget Table ("Basic Budget Table") as adopted by the Los Angeles County ("County") Board of Supervisors. (LACC § 2.102.180.) The amount established in the Basic Budget Table must be reduced by the amount of a recipient's income, expressly including Social Security benefits. (LACC § 2.102.100(A); Policy 44-101.) According to the Basic Budget Table, the maximum General Relief grant for a household of one individual is \$221. (Policy 44-301.) Thus, based on the facts alleged, Petitioners undisputed \$1,589 monthly Social Security benefit (Pet. at 2-3) fully offsets any potential General Relief grant and renders him ineligible. (LACC §§ 2.102.100(A), 2.102.180; Policies 44-101, 44-301.)

In opposition, Petitioner makes three arguments.

First, Petitioner argues that Welfare and Institutions Code ("WIC") section 17000 overrides local policies and provides an absolute requirement to "relieve and support all incompetent, poor, indigent persons." (WIC § 17000.) Petitioner cites *Mooney v. Pickett* (1971) 4 Cal.3d 669 ("Mooney") to assert that "a county cannot use rigid regulations to arbitrarily exclude people from relief." (Opp. at 3.)

In *Mooney*, the California Supreme Court struck down a San Mateo County General Assistance eligibility requirement categorically excluding "employable single men." (*Mooney* at 671.) The Court acknowledged that WIC section 17001 authorizes a county's board of supervisors to adopt standards for eligibility, but held that standards must be consistent with and not in conflict with WIC section 17000. (*Id.* at 678-79.) An "employable single man" who is nevertheless unable to find work, the *Mooney* court reasoned, "does not differ in economic resources from the man whose unemployment stems from more personal disabilities." (*Id.* at 680.) Therefore, the Court determined the employable single man requirement was in conflict with WIC section 17000's purpose of providing support and relief to the indigent. (*Id.* at 681.)

Here, the income eligibility requirement directly measures the potential recipient's economic resources. It is not an arbitrary categorical exclusion of the type invalidated in *Mooney*. Therefore, it does not conflict with WIC section 17000, and falls squarely within the County's authority under WIC section 17001 to establish standards for support.

Second, Petitioner argues that, under *Cooper v. Swoap* (1974) 11 Cal.3d 856 (“Cooper”), Petitioner’s income is not “actually available” because it is exhausted by his medical and safety expenses. (Opp. at 3.) This contention misapplies *Cooper*. In *Cooper*, the California Supreme Court evaluated whether and by what measure a “noncash economic benefit” may be treated as income for the purposes of calculating benefit payments. (*Cooper* at 858-860.) No such imputed income is at issue here. Petitioner receives actual Social Security cash benefits (Pet. at 2-3), and *Cooper* does not permit exclusion of such income based on how a recipient needs or chooses to spend it. Accordingly, *Cooper* is inapplicable.

Third, Petitioner argues that the provision in article I, section 1 of the California Constitution providing “inalienable rights” including “pursuing and obtaining safety” requires Respondent to grant him General Relief cash aid. (Opp. at 3.) Petitioner further asserts that the Equal Protection provisions in article I, section 7 of the California Constitution bar a flat income threshold for the General Relief program. (Opp. at 3.) Petitioner cites *Goldberg v. Kelly* (1970) 397 U.S. 254 (“Goldberg”) for the proposition that “public assistance is a property interest vital to a recipient’s very survival, and its denial must meet constitutional standards of fairness that account for the individual’s actual circumstances.” (Opp. at 3.)

As an initial matter, *Goldberg* does not address the standards a public entity may set for benefit eligibility. Rather, *Goldberg* concerns procedural due process; namely, the requirement that a welfare recipient be afforded a meaningful opportunity to be heard before termination of benefits. (*Goldberg* at 268-70.) It does not limit a public entity’s authority to define eligibility criteria in the first instance.

More generally, Petitioner provides no legal authority or explanation showing how the cited portions of the California Constitution compel Respondent to provide General Relief cash aid notwithstanding statutory and regulatory income limits. Unsupported references to constitutional concepts such as “safety” and “equal protection,” without a developed legal theory or authority, are insufficient to state a cause of action.

Accordingly, the petition does not allege facts establishing legal entitlement to General Relief benefits and therefore fails to state a cause of action.

V.

Conclusion

For the foregoing reasons, the motion for judgment on the pleadings is GRANTED without leave to amend.

Date: July 2, 2026

HON. TIANA J. MURILLO

PLEASE TAKE NOTICE:

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Parties

are encouraged to meet and confer after reading this tentative ruling to see if they can reach an agreement.

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If

a party intends to submit on this tentative ruling, the party may send an email to the Court at with the Subject line "SUBMIT" followed by the case number. The body of the email must include the hearing date and time, counsel's contact information, and the identity of the party submitting.

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Unless

all parties submit by email to this tentative ruling, the parties should arrange to appear remotely (encouraged) or in person for oral argument. You should assume that others may appear at the hearing to argue.

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If

the parties neither submit nor appear at hearing, the Court may take the matter off calendar or adopt the tentative ruling as the order of the Court. After the Court has issued a tentative ruling, the Court may prohibit the withdrawal of the matter without leave.

The petition consists of one hand-written page and 15 pages of unnumbered and unlabeled exhibits. The Court cites the petition by page number, with page 1 referring to the hand-written allegations page, and pages 2-16 referring to the exhibits.

[2]

On April 7, 2026, Department 833, on its own motion, continued the hearing on the MJOP to May 13, 2026. (See Min. Order 4/7/26.)